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Judgment Sheet
IN THE LAHORE HIGH COURT AT LAHORE.
JUDICIAL DEPARTMENT

Customs Reference No. 50994 of 2025

The Collector of Customs, Collectorate of Customs (Enforcement), Sargodha

Versus

Juma Khan and 2 others

JUDGEMENT

Date of Hearing	23.09.2025
Petitioner by:	M/s. Rana Muhammad Mehtab & Syed Majid Ali Bukhari, Advocates
Respondent No.1 by:	Malik Saif Bhutta, Advocate

KHALID ISHAQ, J. This Customs Reference Application filed under Section 196 of the Customs Act, 1969 (the **"Customs Act"**) seeks opinion of this Court on the following questions of law:

i. *Whether the learned Member Judicial of the Customs Appellate Tribunal has not wrongly interpreted the provision of Section 157, 181, SRO 499(I)/2009 dated 13.06.2009 and failed to consider the SRO 1619(I)/2024 dated 03.10.2024 while releasing the vehicle @ 40% redemption fine against the law/fact that vehicle was used exclusively and wholly for transportation of offending/smuggled goods and found carrying smuggled goods falling under clause (2) of Section 2 of the Customs Act, 1969?*

ii. *Whether the learned Single Bench has acted without jurisdiction in passing the Impugned Order, in contravention of the mandatory provisions of sub-section (3) of Section 194A of the Customs Act, 1969, which expressly stipulates that every appeal involving determination of duty, tax, penalty, or fine exceeding five million rupees shall be heard by a Special Bench*